

Case	Title / Nature of Case
02:00 PM 19-CIV-06457 LINE 1	HENG ZHANG VS BRENDON FARRELL
HENG ZHANG BRENDON FARRELL	STEVEN S. LEYDIKER KURT E. WILSON

PLAINTIFF: HENG ZHANG'S MOTION TO ENFORCE TURNOVER ORDER AND COMPEL DISGORGEMENT OF FUNDS BY SWEENEY MASON LLP

TENTATIVE RULING:

Plaintiff's Motion to Enforce Turnover Order is DENIED.

On January 15, 2026, parties attended an Order for Examination in Dept. 30 before the Civil Commissioner. The Minute Order for that hearing reflects:

Judgment Debtor was called before the Court which gave the following order: For any real or personal property or other assets of Judgment Debtor in his custody, possession or control or held by a third party for Judgment Debtor's benefit shall not be concealed, wasted, disbursed, sold, transferred, impaired, or otherwise encumbered by Judgment Debtor or at his direction until a further Order...

Minute Order, 1/15/2026.

Plaintiff identifies \$65,920.40 held in the Sweeney Mason law firm's attorney trust account on January 15, 2026 (MPA, pg. 7, line 19; Wisz Decl., ¶7, Exh. 4), which Plaintiff argues was subject to the above Minute Order. Plaintiff argues that said law firm disbursed to itself \$63,307.80 on January 31, 2026, purportedly in violation of the Minute Order. Wisz. Decl. ¶7, Exh. 4.

Subsequently an Application for Turnover Order was then held on February 6, 2026, with a formal Order entered on February 17, 2026. Relevantly, that Order provided in pertinent part and in relation to this law firm that:

On or before February 27, 2026, Farrell is directed to request... that they release to him any funds held for his benefit in their trust accounts, after deduction of any current charges up through the date of this hearing.

Order, 2/17/2026.

Defendant's Opposition argues that it was entitled to apply third-party funds to earned fees through January 31, 2026, and relevantly, that all of the relevant funds were from third-parties, not Defendant Farrell. Opposition, pg. 1, lines 22-25. Defendant has submitted declarations from two third-party individuals who have apparently been funding some of Defendant's legal expenses, to demonstrate that the funds were paid solely by said third-parties and were not Defendant's property. See, Decl. of K Chen and Decl. of H. Chen, filed on 06/08/2026.

On this record, the Court agrees with Defendant that the Sweeney Mason law firm was allowed to apply these third-party funds to its earned fees. There is no factual opposition to either of the Chen Declarations, that they utilized their own monies to pay for Defendant's legal fees. Nor is the Court going to require any evidentiary hearing on this issue. Further, the Turnover Order of February 17, 2026, specifically allowed the law firm to apply funds to earned fees which is what occurred.

Relatedly, Plaintiff implicitly argues for either a referral to the State Bar for an alleged violation of the duty of candor to the Court (MPA, ¶5), or a contempt of court finding (MPA, pg. 5, lines 17, and pg. 7, lines 22-24). The Court declines both requests. At the February 6, 2026 turnover hearing, the Court recalls attorney James Huang indicating that any funds held in its trust account were remitted by third parties, and not by Defendant. There is also nothing in the record that demonstrates that Mr. Huang knew all of the details of his firm's trust account, as more descriptively laid out in his partner's declaration. *See*, Decl. of Kurt Wilson, filed 6/8/2026.

As such, Plaintiff's Motion to Enforce Turnover Order is DENIED.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

21-CIV-06029 JOHN SCHOLZ, III VS UNITED AIRLINES, INC., A DELAWARE CORP.,
LINE 2

JOHN R. SCHOLZ
UNITED AIRLINES, INC., A DELAWARE CORP.,

JANE C. MARIANI
AMANDA C. SOMMERFELD

PLAINTIFF'S MOTION TO COMPEL COMPLIANCE WITH SUBPOENAS DIRECTED TO TEAMSTERS LOCAL 986 AND LOCAL 856.

TENTATIVE RULING:

Plaintiff's Motion to Compel Compliance with Subpoenas directed to Teamsters Local 986 and Local 856, is DENIED.

Legal Basis

The process by which a nonparty is generally required to provide discovery is a deposition subpoena. (Cal. Code of Civ. Proc. section 2020.010(b).) The subpoena must designate the records "either by specifically describing each individual item or by reasonably particularizing each category of item" and must command compliance "on a date that is no earlier than 20 days after the issuance, or 15 days after the service, of the deposition subpoena, whichever date is later." (Cal. Code of Civ. Proc. section 2020.410(a), (c).)

Upon receipt of the subpoena, a nonparty must make the production on the date and in the manner specified, unless grounds exist to object or disregard the subpoena. (*Board of Registered Nursing v. Superior Court* (2021) 59 Cal.App.5th 1011.) The nonparty either complies with the subpoena or does not—there is no statement of intended compliance (*Id.*) "On that date, the subpoenaing party has all of the information it needs to meet and confer regarding the nonparty's compliance and, if unsatisfied, prepare a motion to compel." (*Id.*, at 1033.)

When a nonparty fails to produce documents as commanded, "the party seeking discovery may move the court for an order compelling that answer or production." (Cal. Code of Civ. Proc. section 2025.480.) The moving party must file the motion within 60 days after "the completion of the record of the deposition." (*Unzipped Apparel, LLC v. Bader* (2007) 156 Cal.App.4th 123, 127, quoting Cal. Code of Civ. Proc. section 2025.480.) For business records subpoenas, this 60-day period begins when the nonparty either produces documents with objections or fails to produce on the designated date (*Id.*)

Here, Plaintiff moves to compel non-party Teamsters Local 986 and Local 856 (hereinafter collectively the "Unions") on its subpoenas issued to same. The motion is based on two arguments, first that the custodian of record's affidavit is incomplete, evasive or non-compliant, and second that the Unions' document production is incomplete. Motion, pg. 2, lines 10-15. Each argument will be addressed separately.

Discussion